lot in any town site may be appraised and sold separate and apart from the lot on which located, under regulations provided by the Secretary of the Interior for the same and for the removal of the buildings. The proceeds for the sale of such buildings shall be paid to the Alaskan Engineering Commission as a reimbursement to its operating account.

(i) *Private entry.* Lots offered at public sale and not sold and lots offered and declared forfeited in a town site may, in the discretion of the Secretary of the Interior, be sold at private entry for the appraised price.

(j) *Orders revoked.* All Executive orders heretofore issued for the disposition of town sites along the Government railroads in Alaska are hereby revoked so far as they conflict with the foregoing provisions. This order is intended to take the place of all other orders making provisions for the sale and disposal of lots in said town sites along Government railroads in Alaska under the provisions of said act.

§ 297.4 *Amendment of Alaska Railroad town site regulations.*[2] It is ordered that Executive Order No. 3489, issued June 10, 1921, be, and the same is hereby, amended to authorize and empower the Alaskan Engineering Commission to levy and collect assessments for town site expenses for the town site of Nenana, for the improvements of streets, sidewalks, alleys, and for promotion of sanitation and fire protection, for the period from July 1, 1920, to August 31, 1921.

CROSS REFERENCES: For surveys, Alaska, see Part 78 of this chapter. For town sites, Alaska, see Part 80 of this chapter.

§ 297.5 *Withdrawal of lands containing springs or water holes; Public Water Reserve No. 107.*[3] It is hereby ordered that every smallest legal subdivision of the public land surveys which is vacant unappropriated unreserved public land and contains a spring or water hole, and all land within one-quarter of a mile of every spring or water hole located on unsurveyed public land be, and the same is hereby, withdrawn from settlement, location, sale, or entry, and reserved for public use in accordance with the provisions of section 10 of the act of December 29, 1916 (39 Stat. 865; 43 U. S. C. 300), and in aid of pending legislation.

§ 297.6 *Modification of order withdrawing lands containing springs or water holes; Public Water Reserve No. 107.* Executive order of April 17, 1926, creating public water reserve No. 107, is hereby modified so as to exclude the Territory of Alaska from the operation thereof.

§ 297.7 *Amendment of Alaska Railroad Town Site Regulations.* (a) It is ordered that Executive Order No. 3489, issued June 10, 1921, containing the Alaska Railroad Town Site Regulations, is hereby amended to authorize the Secretary of the Interior to reappraise and sell the unimproved lots in Nenana Town Site, Alaska, belonging to the United States, and to readjust the assessments levied against them for the improvement of streets, sidewalks and alleys, and for the promotion of sanitation and fire protection by the Alaska Railroad prior to August 31, 1921.

(b) As to the lots within said town site which have been forfeited for failure to pay such assessments, upon which valuable improvements have been placed, the provisions of said order regarding the collection of the unpaid assessments remain effective.

(c) This order shall continue in full force and effect unless and until revoked by the President or by act of Congress.

§ 297.8 *Withdrawal of oil shale deposits and lands containing same.*[4] (a) It is hereby ordered that subject to valid existing rights the deposits of oil shale, and lands containing such deposits owned by the United States, be, and the same are hereby, temporarily withdrawn from lease or other disposal and reserved for the purposes of investigation, examination, and classification.

(b) This order shall continue in full force and effect unless and until revoked by the President or by act of Congress.

CROSS REFERENCE: For oil shale leases, see Part 197 of this chapter.

§ 297.9 *Withdrawal of lands containing hot or medicinal springs, exclusive of Alaska.* (a) It is hereby ordered that every smallest legal subdivision of the public land surveys which is vacant unappropriated unreserved public land and contains a hot spring, or a spring the waters of which possess curative properties; and all land within one-quarter of a mile of every such spring located on unsurveyed public land, exclusive of Alaska,[5] be, and the same is hereby, withdrawn from settlement, location, sale, or entry, and reserved for lease under the provisions of the act of March 3, 1925 (43 Stat. 1133; 43 U. S. C. 971), subject to valid existing rights.

(b) This order shall remain in full force and effect unless and until revoked by the President or by act of Congress.

CROSS REFERENCE: For waters, in general, see Part 292 of this chapter.

§ 297.10 *Modification of order withdrawing oil shale deposits and lands containing same.* Upon recommendation of the Secretary of the Interior, Executive Order No. 5327 of April 15, 1930, withdrawing certain lands for purposes of investigation, examination, and classification, is hereby modified to the extent of authorizing him to issue oil and gas permits and leases under the General Leasing Act of February 25, 1920 (41 Stat. 437; 30 U. S. C. 181 et seq.), for any of the lands withdrawn by said order.

CROSS REFERENCE: For oil and gas permits and leases, see Part 192 of this chapter.

§ 297.11 *First general order of withdrawal.*[6] (a) Subject to the conditions expressed in the act of June 25, 1910 (36 Stat. 847), as amended by the act of August 24, 1912 (37 Stat. 497; 43 U. S. C. 141–143, 16 U. S. C. 471), it is ordered that all of the vacant, unreserved and unappropriated public land in the States of Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, North Dakota, Oregon, South Dakota, Utah, and Wyoming be, and it hereby is, temporarily withdrawn from settlement, location, sale, or entry and reserved for classification, and pending determination of the most useful purpose to which such land may be put in consideration of the provisions of the act of June 28, 1934 (48 Stat. 1269; 43 U. S. C. 315–315n, 1171), and for conservation and development of natural resources.

(b) The withdrawal hereby effected is subject to existing valid rights.

(c) This order shall continue in full force and effect unless and until revoked by the President or by act of Congress.

§ 297.12 *Second general order of withdrawal.*[7] (a) Subject to the conditions expressed in the act of June 25, 1910 (36 Stat. 847), as amended by the act of August 24, 1912 (37 Stat. 497; 43 U. S. C. 141–143, 16 U. S. C. 471) and subject to valid existing rights, it is ordered that all the public lands in the States of Alabama, Arkansas, Florida, Kansas, Louisiana, Michigan, Minnesota, Mississippi, Nebraska, Oklahoma, Washington, and Wisconsin be, and they are hereby, temporarily withdrawn from settlement, location, sale or entry, and reserved for classification and pending determination of the most useful purposes to which said lands may be put in furtherance of said Land Program, and for the conservation and development of natural resources.

(b) Public lands within any of the States herein enumerated which are on the date of this order under an existing reservation for a public purpose are exempted from the force and effect of the provisions of this order so long as such existing reservation remains in force and effect.

(c) This order shall continue in full force and effect unless and until revoked by the President or by act of Congress.

§ 297.13 *Modification of order withdrawing oil shale deposits and lands containing same.* Executive Order No.

[2] Amended by E. O. 3529, Aug. 9, 1921 (§ 297.4), and E. O. 5136, June 12, 1929 (§ 297.7).

The designation of the "Alaskan Engineering Commission" has been changed to "The Alaska Railroad." All matters which formerly were under the control of the chairman of said commission now are under the supervision of the general manager of the said railroad. The functions formerly exercised by the Commissioner of the General Land Office have been transferred to the Director, Bureau of Land Management.

Due to the change in organization, plats of Alaska Railroad town sites are not approved by an official of the Alaska Railroad.

The Area Administrator in Alaska has been designated as Superintendent of Sales of Alaska Railroad town sites.

[3] Modified by E. O. 5106, May 4, 1929 (§ 297.6).

[4] Modified by E. O. 6016, Feb. 6, 1933 (§ 297.10) and E. O. 7038, May 13, 1935 (§ 297.13).

[5] Amended so as to apply to Alaska by P. L. O. 399, August 20, 1947. See § 297.19.

[6] Amended by E. O. 7048, May 20, 1935 (§ 297.14), E. O. 7235, Nov. 26, 1935 (§ 297.15), E. O. 7274, Jan. 14, 1936 (§ 297.16), and E. O. 7599, Apr. 1, 1937 (§ 297.18). For effect of the orders, see footnote to Part 295 of this chapter.

[7] Amended by E. O. 7363, May 6, 1936 (§ 297.17), and E. O. 7599, Apr. 1, 1937 (§ 297.18). For effect of the orders, see footnote to Part 295 of this chapter.